

INCYTE CORP. et al v. ZYDUS LIFESCIENCES LTD.

Plaintiff:	INCYTE CORP. and INCYTE HOLDINGS CORP.
Defendant:	ZYDUS LIFESCIENCES LTD.
Case Number:	2:2026cv06562
Filed:	June 4, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Stacey D Adams
Referring Judge:	Madeline Cox Arleo
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

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This docket was last retrieved on July 17, 2026. A more recent docket listing [may be available from PACER](#).

Date Filed	Document Text
July 17, 2026	Filing 8 Minute Entry for proceedings held before Magistrate Judge Stacey D. Adams: Status Conference held on 7/17/2026. Oder to be filed. (Court Reporter, ECR-TEAMS) (JB)
June 29, 2026	Filing 7 WAIVER OF SERVICE Returned Executed by INCYTE CORP., INCYTE HOLDINGS CORP.. ZYDUS LIFESCIENCES LTD. waiver sent on 6/18/2026, answer due 8/17/2026. (LIZZA, CHARLES)
June 8, 2026	Filing 6 NOTICE of Appearance by ALEXANDER LEE CALLO on behalf of INCYTE CORP., INCYTE HOLDINGS CORP. (CALLO, ALEXANDER)
June 8, 2026	Filing 5 NOTICE of Appearance by SARAH ANN SULLIVAN on behalf of INCYTE CORP., INCYTE HOLDINGS CORP. (SULLIVAN, SARAH)
June 5, 2026	Filing 4 SUMMONS ISSUED as to ZYDUS LIFESCIENCES LTD. Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. (adc,)

Date Filed	Document Text
June 5, 2026	Filing 3 AO120 Patent Form filed. (Attachments: #1 See Attached Complaint and Exhibits) (adc,)
June 5, 2026	Case assigned to Judge Madeline Cox Arleo and Magistrate Judge Stacey D. Adams. (tjg,)
June 4, 2026	Filing 2 Corporate Disclosure Statement by INCYTE CORP., INCYTE HOLDINGS CORP.. (LIZZA, CHARLES)
June 4, 2026	Filing 1 COMPLAINT against ZYDUS LIFESCIENCES LTD. (Filing and Admin fee \$ 405 receipt number ANJDC-17505444) , Related Case Selected, filed by INCYTE CORP., INCYTE HOLDINGS CORP.. (Attachments: #1 Exhibit A, #2 Exhibit B, #3 Exhibit C, #4 Exhibit D, #5 Exhibit E, #6 Exhibit F, #7 Exhibit G, #8 Exhibit H, #9 Civil Cover Sheet)(LIZZA, CHARLES)

I. Executive Summary and Procedural Information

Parties & Counsel:

Plaintiff: [Incyte Corp.](#) and [Incyte Holdings Corporation](#) (Delaware)

Defendant: [Zydus Lifesciences Ltd.](#) (India)

Plaintiff's Counsel: [Saul Ewing LLP](#)

Case Identification: [2:26-cv-06562](#), D.N.J., 08/10/2026

Venue Allegations: Venue is alleged to be proper as Defendant is a foreign corporation that may be sued in any judicial district and has purposefully availed itself of the rights and benefits of New Jersey by asserting counterclaims in the court.

Core Dispute: Plaintiff alleges that Defendant's submission of an Abbreviated New Drug Application (ANDA) for a generic version of Plaintiff's Opzelura® (ruxolitinib) cream constitutes an act of infringement of nine U.S. patents covering topical pharmaceutical formulations.

Technical Context: The technology relates to topical formulations of ruxolitinib, a Janus kinase (JAK) inhibitor, for the treatment of skin disorders such as atopic dermatitis and vitiligo.

Key Procedural History: This action arises under the Hatch-Waxman Act, triggered by Defendant's submission of ANDA No. 218568 with a Paragraph IV Certification. The certification alleges that Plaintiff's patents are invalid and/or will not be infringed by Defendant's proposed generic product. The complaint notes that this is a [First Amended Complaint](#) and that a prior suit involving other patents was filed against Defendant in the same court.

Case Timeline	
Date	Event
2010-05-21	Earliest Patent Priority Date (' 543 ', ' 870 ', ' 624 ', ' 425 ', ' 136 ', ' 419 ', ' 381 ', ' 593 ', ' 096 Patents)
2020-09-01	'543 Patent Issued
2020-12-22	'870 Patent Issued
2022-01-11	'624 Patent Issued
2023-02-07	'425 Patent Issued
2023-02-28	'136 Patent Issued
2025-02-18	'419 Patent Issued
2026-02-10	'381 Patent Issued
2026-03-03	'593 Patent Issued
2026-03-31	'096 Patent Issued
2026-04-22	Alleged date of Zydus's Second Notice Letter to Incyte
2026-07-23	Alleged date of Zydus's Third Notice Letter to Incyte
2026-08-10	Complaint Filing Date

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 10,758,543 - "Topical Formulation for a JAK Inhibitor"

Patent Identification: U.S. Patent No. [10,758,543](#), "Topical Formulation for a JAK Inhibitor", Issued September 1, 2020.

The Invention Explained

Problem Addressed: The patent background describes a need for improved topical formulations of Janus kinase (JAK) inhibitors for treating skin disorders, noting a specific need for formulations that are stable, easily applied, and have good skin permeation characteristics ['543 Patent, col. 2:32-38](#)

The Patented Solution: The patent discloses an oil-in-water emulsion formulation containing the JAK inhibitor (R)-3-cyclopentyl-3-[4-(7H-pyrrolo[2,3-d]pyrimidin-4-yl)-1H-pyrazol-1-yl]propanenitrile, also known as ruxolitinib ['543 Patent, abstract](#) The detailed description states

these formulations exhibit good spreadability and stability, which is believed to result in better skin permeation compared to anhydrous or water-in-oil alternatives '543 Patent, col. 4:30-42 A flowchart in the patent illustrates the manufacturing process for the formulation '543 Patent, Fig. 1

❑ **Technical Importance:** Developing a stable and effective topical delivery system for a JAK inhibitor was significant for treating inflammatory skin disorders like psoriasis, where signaling through the JAK/STAT pathway is implicated in the disease pathology '543 Patent, col. 2:15-30

Key Claims at a Glance

- ❑ The complaint alleges infringement of "one or more claims" without specifying them Compl. ¶40 Independent claim 1 is representative of the patented composition.
- ❑ Claim 1 of the '543 Patent requires:
- ❑ A pharmaceutical composition suitable for topical skin application;
 - ❑ Comprising an oil-in-water emulsion that includes water, an oil component, an emulsifier component, and a solvent component;
 - ❑ The emulsion contains from about 0.5% to about 1.5% by weight of ruxolitinib phosphoric acid salt (on a free base basis);
 - ❑ The oil-in-water emulsion is a "solubilized cream";
 - ❑ The oil-in-water emulsion has a pH of not greater than 3.6.

U.S. Patent No. 10,869,870 - "Topical Formulation for a JAK Inhibitor"

❑ **Patent Identification:** U.S. Patent No. [10,869,870](#), "Topical Formulation for a JAK Inhibitor", Issued December 22, 2020.

The Invention Explained

- ❑ **Problem Addressed:** The '870 Patent addresses the same technical problem as the '543 Patent: the need for improved topical formulations of JAK inhibitors for treating skin disorders ('870 Patent, col. 2:32-38).
- ❑ **The Patented Solution:** The '870 Patent claims a method of treating a skin disorder by applying the same oil-in-water emulsion formulation of ruxolitinib described in the '543 Patent '870 Patent, abstract '870 Patent, col. 3:7-20 The patent describes the formulation as a "solubilized cream" suitable for topical application to treat autoimmune skin disorders '870 Patent, col. 39:50-53 '870 Patent, col. 43:5-13
- ❑ **Technical Importance:** This patent extends protection from the composition itself to the method of using that specific composition to treat skin disorders, a common strategy to broaden the scope of patent coverage for a pharmaceutical product.

Key Claims at a Glance

- ❑ The complaint alleges infringement of "one or more claims" Compl. ¶49 Independent claim 1 is representative of the patented method.
- ❑ Claim 1 of the '870 Patent requires:
- ❑ A method of treating a skin disorder in a human patient;
 - ❑ Applying a pharmaceutically acceptable composition that is an oil-in-water emulsion;
 - ❑ The emulsion comprises water, an oil component, an emulsifier component, and a solvent component;

- The emulsion contains from about 0.5% to about 1.5% by weight of ruxolitinib phosphoric acid salt (on a free base basis);
- The oil-in-water emulsion is a "solubilized cream";
- The emulsion has a pH of not greater than 3.6;
- The treating step inhibits or ameliorates the skin disorder, which is an autoimmune skin disorder.

Multi-Patent Capsules

- U.S. Patent No. 11,219,624:** Entitled "Topical Formulation for a JAK Inhibitor" and issued on January 11, 2022 '624 Patent Compl. ¶7 The patent describes and claims a pharmaceutical composition as a "solubilized cream" containing a specific oil-in-water emulsion of ruxolitinib phosphate for topical application '624 Patent, abstract The asserted independent claims are not specified, but the complaint alleges that Zydus's Proposed Generic Product will infringe '624 Patent Compl. ¶¶56, 58
- U.S. Patent No. 11,571,425:** Entitled "Topical Formulation for a JAK Inhibitor" and issued on February 7, 2023 '425 Patent Compl. ¶8 The patent describes and claims a topical pharmaceutical formulation comprising an oil-in-water emulsion of ruxolitinib for treating skin disorders '425 Patent, abstract The asserted independent claims are not specified, but the complaint alleges that Zydus's Proposed Generic Product will infringe '425 Patent Compl. ¶¶65, 67
- U.S. Patent No. 11,590,136:** Entitled "Topical Formulation for a JAK Inhibitor" and issued on February 28, 2023 '136 Patent Compl. ¶9 This patent claims methods of treating atopic dermatitis by applying a topical formulation of ruxolitinib '136 Patent, abstract The asserted independent claims are not specified, but the complaint alleges that the intended use of Zydus's Proposed Generic Product will infringe '136 Patent Compl. ¶¶74, 76
- U.S. Patent No. 12,226,419:** Entitled "Topical Formulation for a JAK Inhibitor" and issued on February 18, 2025 '419 Patent Compl. ¶10 The patent claims methods of reducing itch in patients with atopic dermatitis by applying a topical ruxolitinib formulation '419 Patent, abstract The asserted independent claims are not specified, but the complaint alleges that the intended use of Zydus's Proposed Generic Product will infringe '419 Patent Compl. ¶¶83, 85
- U.S. Patent No. 12,544,381:** Entitled "Topical Formulation for a JAK Inhibitor" and issued on February 10, 2026 '381 Patent Compl. ¶11 This patent claims methods of treating atopic dermatitis by applying a topical ruxolitinib formulation that achieves specific efficacy endpoints, such as an Investigator's Global Assessment (IGA) score of 0 or 1 '381 Patent, abstract The asserted independent claims are not specified, but the complaint alleges that the intended use of Zydus's Proposed Generic Product will infringe '381 Patent Compl. ¶¶92, 94
- U.S. Patent No. 12,564,593:** Entitled "Topical Formulation for a JAK Inhibitor" and issued on March 3, 2026 '593 Patent Compl. ¶12 This patent claims oil-in-water emulsion formulations of ruxolitinib with specific component requirements '593 Patent, abstract The asserted independent claims are not specified, but the complaint alleges that Zydus's Proposed Generic Product will infringe '593 Patent Compl. ¶¶101, 103
- U.S. Patent No. 12,589,096:** Entitled "Ruxolitinib Formulation for Reduction of Itch in Atopic Dermatitis" and issued on March 31, 2026 '096 Patent Compl. ¶13 The patent claims methods of reducing itch by administering a 0.75% or 1.5% topical ruxolitinib cream '096 Patent, abstract The asserted independent claims are not specified, but the complaint alleges that the intended use of Zydus's Proposed Generic Product will infringe '096 Patent Compl. ¶¶110, 112

III. The Accused Instrumentality

Product Identification

□The accused instrumentality is "Zydus's Proposed Generic Product," a generic version of Incyte's Opzelura® (ruxolitinib) cream, which is the subject of ANDA No. 218568 **Compl. ¶1**
Compl. ¶23

Functionality and Market Context

□The complaint alleges that Zydus seeks FDA approval to manufacture and sell a generic equivalent of Opzelura® cream **Compl. ¶1** Opzelura® is an approved drug product for, among other things, the topical treatment of mild to moderate atopic dermatitis and nonsegmental vitiligo **Compl. ¶14** **Compl. ¶¶17-18** The infringement allegation is predicated on the act of filing the ANDA itself, which seeks approval for a drug product that, by law, must have the same active ingredient, dosage form, and strength as the branded Opzelura® product, and whose proposed label will allegedly instruct for infringing uses **Compl. ¶19** **Compl. ¶38**

IV. Analysis of Infringement Allegations

No probative visual evidence provided in complaint.

The core of the infringement allegation under the Hatch-Waxman Act is the submission of the ANDA itself, which is a technical act of infringement under 35 U.S.C. § 271(e)(2)(A) **Compl. ¶38** The complaint does not provide a detailed breakdown of how the accused product meets each claim limitation, as this information is contained within Zydus's confidential ANDA. The infringement theory is that the proposed generic product will necessarily have the same composition and be used for the same methods as the patented invention.

'543 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A pharmaceutical composition suitable for topical skin application,	Zydus's Proposed Generic Product is alleged to be a pharmaceutical composition for topical application Compl. ¶23	¶¶38, 40	col. 7:4-6
comprising: an oil-in-water emulsion, comprising: water; an oil component; an emulsifier component; a solvent component;	Zydus's Proposed Generic Product is alleged to be an oil-in-water emulsion containing these components, mirroring the formulation of Opzelura® Compl. ¶1 Compl. ¶14	¶¶38, 40	col. 4:20-24
and from about 0.5% to about 1.5% by weight of the emulsion on a free base basis of 1:1 (R)-3-cyclopentyl-3-[4-(7H-	Zydus's Proposed Generic Product is alleged to contain ruxolitinib phosphate salt within the claimed concentration range Compl. ¶23	¶¶38, 40	col. 8:55-63

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
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pyrrolo[2,3-d]pyrimidin-4-yl)-1H-pyrazol-1-yl-]propanenitrile phosphoric acid salt,

wherein the oil-in-water emulsion in the composition is a solubilized cream for topical skin application	Zydus's Proposed Generic Product is alleged to be a solubilized cream, as it is a generic version of Opzelura® cream Compl. ¶1 ¶14	¶¶38, 40	col. 39:50-53
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and further wherein the oil-in-water emulsion has a pH of not greater than 3.6.	Zydus's Proposed Generic Product is alleged to have a pH meeting this limitation Compl. ¶23	¶¶38, 40	col. 39:62-63
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'870 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
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A method of treating a skin disorder in a human patient in need thereof, comprising: applying to the patient's skin a pharmaceutically acceptable composition...	The proposed labeling for Zydus's product is alleged to instruct physicians and patients to apply the product to treat skin disorders like atopic dermatitis (Compl. ¶17; Compl. ¶19).	¶¶49-50	col. 15:26-29
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[composition comprising an oil-in-water emulsion... with 0.5% to 1.5% ruxolitinib phosphate salt]	As described in the analysis of the '543 Patent, Zydus's Proposed Generic Product is alleged to be a composition meeting these limitations Compl. ¶23 Compl. ¶47	¶¶49-50	col. 39:50-63
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wherein the oil-in-water emulsion in the composition is a solubilized cream... and has a pH of not greater than 3.6;	Zydus's Proposed Generic Product is alleged to be a solubilized cream with a pH meeting this limitation Compl. ¶23 Compl. ¶47	¶¶49-50	col. 39:50-63
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wherein treating is one or more of inhibiting the skin disorder and ameliorating the skin disorder; and wherein the skin disorder is an autoimmune skin disorder.	The FDA-approved indications for Opzelura®, which Zydus's product is intended to copy, include autoimmune skin disorders such as atopic dermatitis (Compl. ¶17).	¶¶49-50	col. 15:26-29
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Identified Points of Contention:

Scope Questions: The infringement analysis for the composition claims will depend on the definition of terms like "solubilized cream". The patents distinguish this form from others, such as dispersed creams, suggesting its meaning could be a point of dispute '543 Patent, col. 32:44-52. The definition of the various formulation "components" (e.g., "oil component", "emulsifier component") and whether Zydus's chosen excipients fall within their scope will also be critical.

Technical Questions: A primary question for the court will be a factual comparison of Zydus's confidential ANDA formulation against the claim limitations. Zydus's non-infringement defense, noted in its Paragraph IV certification, suggests there may be a technical mismatch, for example, in the specific percentages of ingredients, the identity of the excipients, or the final formulation's pH Compl. ¶33. For the method claims, the dispute will turn on whether Zydus's proposed label induces infringement by instructing users to perform the claimed methods

Compl. ¶19 Compl. ¶50

V. Key Claim Terms for Construction

The Term: "solubilized cream"

Context and Importance: This term appears in the independent claims of many of the asserted patents (e.g., '543 Patent, claim 1; '870 Patent, claim 1) and is central to defining the invention. A finding that Zydus's proposed generic is not a "solubilized cream" could support a non-infringement defense. Practitioners may focus on this term because the patents contrast it with other formulation types, such as "water-in-oil" or "anhydrous" formulations, implying it has a specific technical meaning related to the dissolution state of the active ingredient '543 Patent, col. 4:56-65.

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: The specification describes the "solubilized cream" in functional terms, noting it has a "thick, creamy appearance which allows for good spreadability" and leads to "better skin permeation" ('543 Patent, col. 4:30-34). This could support an interpretation based on the formulation's physical properties and performance rather than a strict compositional recipe.

Evidence for a Narrower Interpretation: The patent provides specific examples of the "solubilized cream" formulation, detailing the identity and percentage of each component '543 Patent, Tables 2-5. A defendant may argue that the term should be limited to the specific embodiments disclosed, particularly the use of certain solvents like propylene glycol and polyethylene glycol to dissolve the ruxolitinib phosphate salt '543 Patent, col. 8:29-41.

The Term: "pH of not greater than 3.6"

Context and Importance: This quantitative limitation is a critical boundary for infringement of claims in patents like the '543 and '870. If the pH of Zydus's product is proven to be higher than 3.6, infringement may be avoided.

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: The claim language provides a clear upper limit. A plaintiff would argue that any formulation with a measured pH at or below 3.6 literally infringes. The patent describes this low pH as an important feature, linking it to the stability and efficacy of the formulation.

Evidence for a Narrower Interpretation: While the number itself is clear, a potential dispute could arise over the methodology for measuring the pH. The patent's examples show

measured pH values of 3.1, 3.3, and 3.6 for different batches '543 Patent, Table 6 A party could argue that the term should be construed in light of the specific testing conditions used to generate the data in the patent, although challenging a plain numerical limit is difficult.

VI. Other Allegations

❑ **Indirect Infringement:** The complaint alleges inducement of infringement, stating that upon approval of its ANDA, Zydus will intentionally encourage acts of direct infringement by physicians, pharmacists, and patients Compl. ¶41 Compl. ¶50 This encouragement is alleged to occur through Zydus's marketing and the product's prescribing information, which will instruct on the patented methods of use Compl. ¶19 The complaint also pleads contributory infringement, alleging Zydus's product is especially adapted for an infringing use and has no substantial non-infringing use Compl. ¶42 Compl. ¶51

❑ **Willful Infringement:** The complaint does not use the term "willful infringement." It does, however, allege that each count represents an "exceptional one" and seeks an award of attorneys' fees under 35 U.S.C. § 285 Compl. ¶45 Compl. ¶54 The basis for this allegation is Zydus's submission of the ANDA with knowledge of the patents-in-suit, as evidenced by the Paragraph IV certification notice letters sent to Incyte Compl. ¶34 Compl. ¶36

VII. Analyst's Conclusion: Key Questions for the Case

❑ A central issue will be one of **claim construction and scope**: can the term "solubilized cream", which the patents distinguish from other formulations, be interpreted to encompass the specific combination of excipients and the physical state of the active ingredient in Zydus's proposed generic product?

❑ A key evidentiary question will be one of **literal infringement**: does Zydus's confidential ANDA specify a formulation that meets every numerical limitation of the asserted claims, including the specific weight percentages of the active ingredient and the formulation's "pH of not greater than 3.6"?

❑ A dispositive issue for the litigation will be **validity**: can Zydus prove by clear and convincing evidence that the asserted claims are invalid, likely on grounds of obviousness over prior art topical formulations or lack of adequate written description for the claimed range of compositions? Zydus's Paragraph IV letters allege invalidity, making this a core of its defense Compl. ¶33

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Attorneys for Plaintiffs
Incyte Corporation and
Incyte Holdings Corporation
UNITED STATES DISTRICT COURT
DISTRICT OF NEW JERSEY
INCYTE CORP. and INCYTE
HOLDINGS CORP.,
Plaintiffs,

v.

ZYDUS LIFESCIENCES LTD.,
Defendant.

Case No. 2:26-cv-06562-MCA-SDA
FIRST AMENDED COMPLAINT
FOR PATENT INFRINGEMENT
(Filed Electronically)

Plaintiffs Incyte Corporation and Incyte Holdings Corporation (together, “Incyte”), by their undersigned attorneys, for their Amended Complaint against Defendant Zydus Lifesciences Ltd. (“Zydus”), allege as follows:

Nature of the Action

1.

This is an action for patent infringement under the patent laws of the United States, 35 U.S.C. § 100, et seq., arising from Zydus’s submission of Abbreviated New Drug Application (“ANDA”) No. 218568 (“Zydus’s ANDA”) to the United States Food and Drug Administration (“FDA”) seeking approval to manufacture, use, import, distribute, offer to sell, and/or sell a generic version of Incyte’s Opzelura® (ruxolitinib) drug product prior to the expiration of United States Patent Nos. 10,758,543 (the “’543 patent”), 10,869,870 (the “’870 patent”), 11,219,624 (the “’624

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patent”), 11,571,425 (the “’425 patent”), 11,590,136 (the “’136 patent”), 12,226,419 (the “’419 patent”), 12,544,381 (the “’381 patent”), 12,564,593 (the “’593 patent”), and 12,589,096 (the “’096 patent”) (collectively, the “patents-in-suit”). The patents-in-suit are owned by Incyte Corporation and/or Incyte Holdings Corporation.

The Parties

2.

Plaintiff Incyte Corporation is a corporation organized and existing under the laws of the State of Delaware, having a place of business at 1801 Augustine Cut-Off, Wilmington, DE 19803.

3.

Plaintiff Incyte Holdings Corporation is a corporation organized and existing under the laws of the State of Delaware, having a place of business at 1801 Augustine Cut-Off, Wilmington, DE 19803.

4.

On information and belief, Defendant Zydus is a corporation organized and existing under the laws of India, having a place of business at Zydus Corporate Park, Scheme No. 63, Survey No. 536, Khoraj (Gandhinagar), Nr. Vaishnodevi Circle, S.G. Highway, Ahmedabad 382481, Gujarat, India.

The Patents-in-Suit

5.

On September 1, 2020, the United States Patent and Trademark Office (“USPTO”) duly and lawfully issued the ’543 patent, entitled, “Topical Formulation for a JAK Inhibitor.” A

copy of the '543 patent is attached hereto as Exhibit A.

6.

On December 22, 2020, the USPTO duly and lawfully issued the '870 patent, entitled, "Topical Formulation for a JAK Inhibitor." A copy of the '870 patent is attached hereto as Exhibit B.

7.

On January 11, 2022, the USPTO duly and lawfully issued the '624 patent, entitled, "Topical Formulation for a JAK Inhibitor." A copy of the '624 patent is attached hereto as Exhibit

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C.

8.

On February 7, 2023, the USPTO duly and lawfully issued the '425 patent, entitled, "Topical Formulation for a JAK Inhibitor." A copy of the '425 patent is attached hereto as Exhibit

D.

9.

On February 28, 2023, the USPTO duly and lawfully issued the '136 patent, entitled, "Topical Formulation for a JAK Inhibitor." A copy of the '136 patent is attached hereto as Exhibit

E.

10.

On February 18, 2025, the USPTO duly and lawfully issued the '419 patent, entitled, "Topical Formulation for a JAK Inhibitor." A copy of the '419 patent is attached hereto as Exhibit

F.

11.

On February 10, 2026, the USPTO duly and lawfully issued the '381 patent, entitled, "Topical Formulation for JAK Inhibitor." A copy of the '381 patent is attached hereto as Exhibit G.

12.

On March 3, 2026, the USPTO duly and lawfully issued the '593 patent, entitled, "Topical Formulation for a JAK Inhibitor." A copy of the '593 patent is attached hereto as Exhibit H.

13.

On March 31, 2026, the USPTO duly and lawfully issued the '096 patent, entitled, "Ruxolitinib Formulation for Reduction of Itch in Atopic Dermatitis." A copy of the '096 patent is attached hereto as Exhibit I.

The Opzelura® Drug Product

14.

Incyte Corporation holds an approved New Drug Application ("NDA") under Section 505(a) of the Federal Food Drug and Cosmetic Act ("FFDCA"), 21 U.S.C. § 355(a) for Opzelura® (ruxolitinib) cream (NDA No. 215309).

15.

The claims of the patents-in-suit cover, inter alia, pharmaceutical compositions

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comprising ruxolitinib and methods of using and administering pharmaceutical compositions comprising ruxolitinib.

16.

Pursuant to 21 U.S.C. § 355(b)(1) and attendant FDA regulations, the patents-in-suit are listed in the FDA publication, "Approved Drug Products with Therapeutic Equivalence Evaluations" (the "Orange Book"), with respect to Opzelura®.

17.

The FDA-approved prescribing information for Opzelura® instructs and encourages

physicians, pharmacists, other healthcare workers, and patients to administer Opzelura® for, inter alia, the topical short-term and non-continuous chronic treatment of mild to moderate atopic dermatitis in non-immunocompromised adult and pediatric patients 2 years of age and older whose disease is not adequately controlled with topical prescription therapies or when those therapies are not advisable.

18.

The FDA-approved prescribing information for Opzelura® instructs and encourages physicians, pharmacists, other healthcare workers, and patients to administer Opzelura® for, inter alia, the topical treatment of nonsegmental vitiligo in adult and pediatric patients 12 years of age and older.

19.

The FDA-approved prescribing information for Opzelura® instructs and encourages physicians, pharmacists, other healthcare workers, and patients to administer Opzelura® according to one or more of the methods claimed in the patents-in-suit.

Jurisdiction and Venue

20.

This Court has jurisdiction over the subject matter of this action pursuant to 28 U.S.C. §§ 1331, 1338(a), 2201, and 2202.

21. On information and belief, Zydus is in the business of, among other things, manufacturing, marketing, importing, offering for sale, and selling pharmaceutical products,

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including generic drug products, throughout the United States, including in this Judicial District.

22.

This Court has personal jurisdiction over Zydus pursuant to Federal Rule of Civil Procedure 4(k)(2), including because: (a) Incyte's claims arise under federal law; (b) Zydus is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and (c) Zydus has sufficient contacts with the United States as a whole, including, without limitation, preparing and submitting ANDAs to the FDA and/or manufacturing, importing, offering to sell, and/or selling pharmaceutical products that are distributed throughout the United States, such that this Court's exercise of jurisdiction over Zydus satisfies due process.

23. On information and belief, Zydus submitted ANDA No. 218568 seeking FDA approval to engage in the manufacture, use, importation, distribution, offer to sell, and/or sale of the generic drug product that is the subject of Zydus's ANDA ("Zydus's Proposed Generic Product"), throughout the United States, including in New Jersey and in this Judicial District prior to the expiration of the patents-in-suit.

24. On information and belief, this Judicial District is a likely destination for Zydus's Proposed Generic Product.

25.

On information and belief, Zydus intends to benefit directly if its ANDA is approved by participating in the manufacture, importation, distribution, and/or sale of Zydus's Proposed Generic Product.

26.

Zydus has purposefully availed itself of the rights, benefits, and privileges of New Jersey, including by asserting counterclaims in this Court. See, e.g., *Salix Pharms., Inc., et al. v. Zydus Pharms. (USA) Inc., et al.*, No. 24-9512 (D.N.J.); *AstraZeneca Pharms. LP, et al. v. Zydus Pharms. (USA) Inc., et al.*, No. 24-10629 (D.N.J.); and *Intra-Cellular Therapies, Inc., v. Aurobindo Pharma Ltd. et al.*, No. 24-4264 (D.N.J.).

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27.

For at least the foregoing reasons, venue is proper in this Judicial District for Zydus pursuant to 28 U.S.C. §§ 1391 and/or 1400(b), including, for example, because Zydus is a company organized and existing under the laws of India and may be sued in any judicial district.

Acts Giving Rise to this Suit

28.

Pursuant to Section 505 of the FFDCA, Zydus submitted ANDA No. 218568 seeking approval to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Zydus's Proposed Generic Product before the patents-in-suit expire.

29.

On information and belief, following FDA approval of Zydus's ANDA, Zydus will make, use, sell, or offer to sell Zydus's Proposed Generic Product throughout the United States, and/or import such generic product into the United States.

30.

On information and belief, in connection with the submission of ANDA No. 218568 as described above, Zydus provided a written certification to the FDA pursuant to Section 505 of the FFDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV) ("Zydus's Paragraph IV Certification"), alleging that the claims of U.S. Patent Nos. 11,510,923 ("the '923 patent") and 11,590,137 ("the '137 patent") are invalid and/or will not be infringed by the activities described in Zydus's ANDA.

31. No earlier than January 27, 2025, Zydus sent to Incyte a written notice of Zydus's Paragraph IV Certification ("Zydus's First Notice Letter"). Zydus's First Notice Letter alleged that the claims of the '923 and the '137 patents are invalid and/or will not be infringed by the activities described in Zydus's ANDA. Zydus's First Notice Letter conveyed that Zydus seeks approval to market Zydus's Proposed Generic Product before the patents-in-suit expire.

32. After receiving Zydus's First Notice Letter, Incyte filed a first Hatch-Waxman patent infringement suit against Zydus in this Court on March 13, 2025, alleging infringement of the '923 and the '137 patents. That suit is pending before this Court as Incyte Corp., et al. v.

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Taro Pharmaceuticals Inc., et al., No. 25-1858 (MCA)(SDA) (D.N.J.).

33.

On information and belief, in connection with the submission of ANDA No. 218568 as described above, Zydus provided a second written certification to the FDA pursuant to Section 505 of the FFDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV)

("Zydus's Second Paragraph IV

Certification"), alleging that the claims of the '543 patent, the '870 patent, the '624 patent, the '425 patent, the '136 patent, the '419 patent, the '381 patent, and the '593 patent are invalid and/or will not be infringed by the activities described in Zydus's ANDA.

34. No earlier than April 22, 2026, Zydus sent to Incyte a written notice of Zydus's Second Paragraph IV Certification ("Zydus's Second Notice Letter"). Zydus's Second Notice Letter alleged that the claims of the '543 patent, the '870 patent, the '624 patent, the '425 patent, the '136 patent, the '419 patent, the '381 patent, and the '593 patent are invalid and/or will not be infringed by the activities described in Zydus's ANDA. Zydus's Second Notice Letter conveyed that Zydus seeks approval to market Zydus's Proposed Generic Product before the '543 patent, the '870 patent, the '624 patent, the '425 patent, the '136 patent, the '419 patent, the '381 patent, and the '593 patent expire.

35.

On information and belief, in connection with the submission of ANDA No. 218568 as described above, Zydus provided a third written certification to the FDA pursuant to Section 505 of the FFDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV) ("Zydus's Third Paragraph IV Certification"), alleging that the claims of the '096 patent are invalid and/or will not be infringed by the activities described in Zydus's ANDA.

36. No earlier than July 23, 2026, Zydus sent to Incyte a written notice of Zydus's Third Paragraph IV Certification ("Zydus's Third Notice Letter"). Zydus's Third Notice Letter alleged that the claims of the '096 patent are invalid and/or will not be infringed by the activities described

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in Zydus's ANDA. Zydus's Third Notice Letter conveyed that Zydus seeks approval to market Zydus's Proposed Generic Product before the '096 patent expires.

Count I: Infringement of the '543 Patent

37.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully set forth herein.

38.

Zydus's submission of ANDA No. 218568, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Zydus's Proposed Generic Product, prior to the expiration of the '543 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).

39.

There is a justiciable controversy between the parties hereto as to the infringement of the '543 patent.

40. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will infringe one or more claims of the '543 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States.

41. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will induce infringement of one or more claims of the '543 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will intentionally encourage acts of direct infringement with knowledge of the '543 patent and knowledge that its acts are encouraging infringement.

42. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will contributorily infringe one or more claims of the '543 patent under 35 U.S.C. § 271(c) by making,

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using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States. On information and belief, Zydus has had and continues to have knowledge that Zydus's Proposed Generic Product is especially adapted for a use that infringes one or more claims of the '543 patent and that there is no substantial non-infringing use for Zydus's Proposed Generic Product.

43.

Incyte will be substantially and irreparably damaged and harmed if Zydus's infringement of the '543 patent is not enjoined.

44.

Incyte does not have an adequate remedy at law.

45.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count II: Infringement of the '870 Patent

46.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully set forth herein.

47.

Zydus's submission of ANDA No. 218568, with the accompanying Paragraph IV

Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Zydus's Proposed Generic Product, prior to the expiration of the '870 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).

48.

There is a justiciable controversy between the parties hereto as to the infringement of the '870 patent.

49. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will infringe one or more claims of the '870 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States.

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50. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will induce infringement of one or more claims of the '870 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will intentionally encourage acts of direct infringement with knowledge of the '870 patent and knowledge that its acts are encouraging infringement.

51. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will contributorily infringe one or more claims of the '870 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States. On information and belief, Zydus has had and continues to have knowledge that Zydus's Proposed Generic Product is especially adapted for a use that infringes one or more claims of the '870 patent and that there is no substantial non-infringing use for Zydus's Proposed Generic Product.

52.

Incyte will be substantially and irreparably damaged and harmed if Zydus's infringement of the '870 patent is not enjoined.

53.

Incyte does not have an adequate remedy at law.

54.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count III: Infringement of the '624 Patent

55.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully set forth herein.

56.

Zydus's submission of ANDA No. 218568, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Zydus's Proposed Generic Product,

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prior to the expiration of the '624 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).

57.

There is a justiciable controversy between the parties hereto as to the infringement of the '624 patent.

58. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will infringe one or more claims of the '624 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States.

59. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will

induce infringement of one or more claims of the '624 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will intentionally encourage acts of direct infringement with knowledge of the '624 patent and knowledge that its acts are encouraging infringement.

60. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will contributorily infringe one or more claims of the '624 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States. On information and belief, Zydus has had and continues to have knowledge that Zydus's Proposed Generic Product is especially adapted for a use that infringes one or more claims of the '624 patent and that there is no substantial non-infringing use for Zydus's Proposed Generic Product.

61.

Incyte will be substantially and irreparably damaged and harmed if Zydus's infringement of the '624 patent is not enjoined.

62.

Incyte does not have an adequate remedy at law.

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63.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count IV: Infringement of the '425 Patent

64.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully set forth herein.

65.

Zydus's submission of ANDA No. 218568, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Zydus's Proposed Generic Product, prior to the expiration of the '425 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).

66.

There is a justiciable controversy between the parties hereto as to the infringement of the '425 patent.

67. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will infringe one or more claims of the '425 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States.

68. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will induce infringement of one or more claims of the '425 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will intentionally encourage acts of direct infringement with knowledge of the '425 patent and knowledge that its acts are encouraging infringement.

69. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will contributorily infringe one or more claims of the '425 patent under 35 U.S.C. § 271(c) by making,

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using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States. On information and belief, Zydus has had and continues to have knowledge that Zydus's Proposed Generic Product is especially adapted for a use that infringes one or more claims of the '425 patent and that there is no substantial non-infringing use for Zydus's Proposed Generic

Product.

70.

Incyte will be substantially and irreparably damaged and harmed if Zydus's infringement of the '425 patent is not enjoined.

71.

Incyte does not have an adequate remedy at law.

72.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count V: Infringement of the '136 Patent

73.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully set forth herein.

74.

Zydus's submission of ANDA No. 218568, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Zydus's Proposed Generic Product, prior to the expiration of the '136 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).

75.

There is a justiciable controversy between the parties hereto as to the infringement of the '136 patent.

76. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will infringe one or more claims of the '136 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States.

77. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will induce infringement of one or more claims of the '136 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will intentionally encourage acts of direct infringement with knowledge of the '136 patent and knowledge that its acts are encouraging infringement.

78. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will contributorily infringe one or more claims of the '136 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States. On information and belief, Zydus has had and continues to have knowledge that Zydus's Proposed Generic Product is especially adapted for a use that infringes one or more claims of the '136 patent and that there is no substantial non-infringing use for Zydus's Proposed Generic Product.

79.

Incyte will be substantially and irreparably damaged and harmed if Zydus's infringement of the '136 patent is not enjoined.

80.

Incyte does not have an adequate remedy at law.

81.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count VI: Infringement of the '419 Patent

82.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully set forth herein.

83.

Zydus's submission of ANDA No. 218568, with the accompanying Paragraph IV

Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Zydus's Proposed Generic Product, prior to the expiration of the '419 patent, constitutes infringement of one or more of the claims of

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that patent under 35 U.S.C. § 271(e)(2)(A).

84.

There is a justiciable controversy between the parties hereto as to the infringement of the '419 patent.

85. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will infringe one or more claims of the '419 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States.

86. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will induce infringement of one or more claims of the '419 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will intentionally encourage acts of direct infringement with knowledge of the '419 patent and knowledge that its acts are encouraging infringement.

87. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will contributorily infringe one or more claims of the '419 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States. On information and belief, Zydus has had and continues to have knowledge that Zydus's Proposed Generic Product is especially adapted for a use that infringes one or more claims of the '419 patent and that there is no substantial non-infringing use for Zydus's Proposed Generic Product.

88.

Incyte will be substantially and irreparably damaged and harmed if Zydus's infringement of the '419 patent is not enjoined.

89.

Incyte does not have an adequate remedy at law.

90.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable

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attorneys' fees under 35 U.S.C. § 285.

Count VII: Infringement of the '381 Patent

91.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully set forth herein.

92.

Zydus's submission of ANDA No. 218568, with the accompanying Paragraph IV

Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Zydus's Proposed Generic Product, prior to the expiration of the '381 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).

93.

There is a justiciable controversy between the parties hereto as to the infringement of the '381 patent.

94. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will infringe one or more claims of the '381 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States.

95. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will

induce infringement of one or more claims of the '381 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will intentionally encourage acts of direct infringement with knowledge of the '381 patent and knowledge that its acts are encouraging infringement.

96. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will contributorily infringe one or more claims of the '381 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States. On information and belief, Zydus has had and continues to have knowledge that Zydus's

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Proposed Generic Product is especially adapted for a use that infringes one or more claims of the '381 patent and that there is no substantial non-infringing use for Zydus's Proposed Generic Product.

97.

Incyte will be substantially and irreparably damaged and harmed if Zydus's infringement of the '381 patent is not enjoined.

98.

Incyte does not have an adequate remedy at law.

99.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count VIII: Infringement of the '593 Patent

100.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully set forth herein.

101. Zydus's submission of ANDA No. 218568, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Zydus's Proposed Generic Product, prior to the expiration of the '593 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).

102. There is a justiciable controversy between the parties hereto as to the infringement of the '593 patent.

103. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will infringe one or more claims of the '593 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States.

104. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will induce infringement of one or more claims of the '593 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United

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States. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will intentionally encourage acts of direct infringement with knowledge of the '593 patent and knowledge that its acts are encouraging infringement.

105. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will contributorily infringe one or more claims of the '593 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States. On information and belief, Zydus has had and continues to have knowledge that Zydus's Proposed Generic Product is especially adapted for a use that infringes one or more claims of the '593 patent and that there is no substantial non-infringing use for Zydus's Proposed Generic Product.

106.

Incyte will be substantially and irreparably damaged and harmed if Zydus's infringement of the '593 patent is not enjoined.

107.

Incyte does not have an adequate remedy at law.

108. This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count IX: Infringement of the '096 Patent

109.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully set forth herein.

110. Zydus's submission of ANDA No. 218568, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Zydus's Proposed Generic Product, prior to the expiration of the '096 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).

111. There is a justiciable controversy between the parties hereto as to the infringement
18

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of the '096 patent.

112. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will infringe one or more claims of the '096 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States.

113. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will induce infringement of one or more claims of the '096 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will intentionally encourage acts of direct infringement with knowledge of the '096 patent and knowledge that its acts are encouraging infringement.

114. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will contributorily infringe one or more claims of the '096 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product in the United States. On information and belief, Zydus has had and continues to have knowledge that Zydus's Proposed Generic Product is especially adapted for a use that infringes one or more claims of the '096 patent and that there is no substantial non-infringing use for Zydus's Proposed Generic Product.

115.

Incyte will be substantially and irreparably damaged and harmed if Zydus's infringement of the '096 patent is not enjoined.

116.

Incyte does not have an adequate remedy at law.

117. This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

PRAYER FOR RELIEF

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WHEREFORE, Plaintiffs Incyte respectfully request the following relief:

(A) A Judgment that Zydus has infringed the patents-in-suit by submitting ANDA No. 218568 with the accompanying Paragraph IV Certifications and notice to Incyte of same;

(B) A Judgment that Zydus has infringed, and that Zydus's making, using, selling, offering to sell, and/or importing Zydus's Proposed Generic Product will infringe one or more claims of the patents-in-suit;

(C) An Order that, pursuant to 35 U.S.C. § 271(e)(4)(A), the effective date of FDA

approval of ANDA No. 218568 be a date which is not earlier than the later of the expiration of the patents-in-suit, or any later expiration of exclusivity to which Incyte is or becomes entitled;

(D) Preliminary and permanent injunctions enjoining Zydus and its officers, agents, attorneys, and employees, and those acting in privity and/or concert with them, from making, using, offering to sell, selling, and/or importing Zydus's Proposed Generic Product until after the expiration of the patents-in-suit, or any later expiration of exclusivity to which Incyte is or becomes entitled;

(E) A permanent injunction, pursuant to 35 U.S.C. § 271(e)(4)(B), restraining and enjoining Zydus, its officers, agents, attorneys, and employees, and those acting in privity and/or concert with them, from practicing any of the subject matter claimed in the patents-in-suit, or from actively inducing or contributing to the infringement of any claim of the patents-in-suit, until after the expiration of the patents-in-suit, or any later expiration of exclusivity to which Incyte is or becomes entitled;

(F) A Judgment that the commercial manufacture, use, offer for sale, sale, and/or importation into the United States of Zydus's Proposed Generic Product will directly infringe, induce infringement of, and/or contribute to infringement of the patents-in-suit;

(G) To the extent that Zydus, its officers, agents, attorneys, and/or employees, or

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those acting in privity and/or concert with them, has committed any acts with respect to the subject matter claimed in the patents-in-suit, other than those acts expressly exempted by 35 U.S.C. § 271(e)(1), a Judgment awarding Incyte damages for such acts;

(H)

If Zydus, its officers, agents, attorneys, and/or employees, or those acting in privity and/or concert with them, engages in the commercial manufacture, use, offer for sale, sale, and/or importation into the United States of Zydus's Proposed Generic Product prior to the expiration of the patents-in-suit, a Judgment awarding damages to Incyte resulting from such infringement, together with interest;

(I) A Judgment declaring that the patents-in-suit remain valid and enforceable;

(J) A Judgment that this is an exceptional case pursuant to 35 U.S.C. § 285 and awarding Incyte its attorneys' fees incurred in this action;

(K) A Judgment awarding Incyte its costs and expenses incurred in this action; and

(L)

Such further and other relief as this Court may deem just and proper.

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Dated: August 10, 2026

By: s/ Charles M. Lizza

Charles M. Lizza

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